

# Tamil Nadu Teachers Education University Act, 2008

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[Tamil Nadu Universities Laws \(Third Amendment\) Act, 2022 . \(Act 2 of 2023\)](#)

[on](#)

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[\]](#)

[An Act to provide for the establishment and incorporation of Teachers Education University in the State of Tamil Nadu for promoting excellence in teachers education.](#)

[Be it enacted by the Legislative Assembly for the State of Tamil Nadu in the Fifty ninth Year of the Republic of India as follows:-](#)

[Chapter 1](#)

[Preliminary](#)

BODY

1.

Short title, extent, application and commencement.

(1)

This Act may be called the Tamil Nadu Teachers Education University Act, 2008.

(2)

It extends to the whole of the State of Tamil Nadu.

(3)

It applies to

(a)

Every college deemed to be affiliated to the University under this Act;

(b)

Every other college or institute situated within the University area which may be affiliated to the University in accordance with the provisions of this Act, Statutes or Ordinances; and

(c)

Every college which conducts any course of study or imparts any training which may qualify for the award of any degree in teachers education.

(4)

This Act shall come into force on such date as the State Government may, by notification, appoint and different dates may be appointed for different provisions of this Act.

2.

Definitions.

In this Act, unless the context otherwise requires-

(a)

"affiliated college" means any college situate within the University area and affiliated to the University and providing courses of study for admission to the examination for degrees of the University in teachers education and includes a college deemed to be affiliated to the University under this Act;

(b)

"autonomous college" means any college designated as an autonomous college by a Statute;

(c)

"college" means any college affiliated to the University and providing courses of study in teachers education approved by the National Council for Teachers Education;

(d)

"Government" means the State Government;

(e)

"hostel" means a unit of residence for the students of the University maintained or recognized by the University in accordance with the provisions of this Act and includes a hostel deemed to be recognized by the University under this Act;

(f)

"notified date" means the date specified in the notification issued under sub-section (4) of section 1;

(g)

"post-graduate college" means an affiliated college situate within the University area and providing post-graduate courses of study in teachers education leading up to the post-graduate degrees of the University;

(h)

"prescribed" means prescribed by this Act or the statutes, ordinances or regulations;

(i)

"Principal" means the Head of a college;

(j)

"statutes", "ordinances" and "regulations" mean, respectively, the statutes, ordinances and regulations of the University made or continued in force under this Act;

(k)

"teachers" mean such Lecturers, Readers, Assistant Professors, Professors and other persons giving instruction in affiliated colleges, or in hostels and Librarians as may be declared by the statutes to be teachers;

(l)

"University" means the Tamil Nadu Teachers Education University;

(m)

"University area" means the area to which this Act extends under sub-section (2) of section 1;

(n)

"University center" means any area within the University area containing one or more departments or colleges competent to engage in higher teaching and research works;

(o)

"University Grants Commission" means the Commission established under section 4 of the University Grants Commission Act, 1956 (Central Act III of 1956);

(p)

"University Library" means a Library maintained by the University, whether instituted by it or not.

## Chapter 2

### The University

3.

#### Establishment of University.

(1)

There shall be established a University by the name "The Tamil Nadu Teachers Education University".

(2)

The University shall be a body corporate having perpetual succession and a common seal and shall sue and be sued by the said name.

(3)

The Headquarters of the University shall be located within the limits of Chennai or in any place within the radius of one hundred kilo-meters around those limits.

4.

#### Objectives and Powers of University.

The University shall have the following objects and powers, namely:-

(1)

To monitor teacher education as approved by the National Council for Teacher Education at all levels in the State academically.

(2)

To develop research facilities in teachers education and to find out the ways and means to identify innovative courses in teachers education.

(3)

To institute degrees, and other academic distinctions in teachers education as approved by the National Council for Teachers Education.

(4)

To confer degrees, and other academic distinctions in teachers education on persons who have carried out research in the University or in any other centers or institution recognized by the University under conditions prescribed.

(5)

To confer honorary degrees in teachers education in the prescribed manner and under conditions prescribed.

(6)

To work out the modalities to offer programmes in the latest fields for the development of teachers education.

(7)

To conduct and organize seminars, workshops and symposia in promoting teachers education with a view to offering programmes in the latest fields and to develop the extension activities.

(8)

To supervise and control hostels and to regulate and enforce discipline among the students of the University and to make arrangements for promoting their health and general welfare.

(9)

To prescribe conditions under which the award of any degree, or other academic distinction may be withheld.

(10)

To co-operate with any other University, Authority or Association or any other public or private body having in view, the promotion of purposes and objects similar to those of the University for such purposes as may be agreed upon, on such terms and conditions, as may, from time to time, be prescribed.

(11)

To establish and maintain University libraries, research stations and publication bureau.

(12)

To institute research posts and to make appointments to such posts.

(13)

To institute and award fellowships, including traveling fellowships, scholarships, medals and prizes in the manner prescribed.

(14)

To establish, maintain or recognize hostels, for students of the University and residential accommodation for the staff of the University and to withdraw any such recognition.

(15)

To affiliate colleges to the University as affiliated colleges, or post graduate colleges under conditions prescribed and to withdraw affiliation from colleges.

(16)

To fix fees and to demand and receive such fees as may be prescribed.

(17)

To hold and manage endowments and other properties and funds of the University.

(18)

To borrow money with the approval of the Government on the security of the property of the University for the purposes of the University.

(19)

To enter into agreement with other bodies or persons for the purpose of promoting the objectives of the University including the assuming of the management of any institution under them and the taking over of its rights and liabilities; and

(20)

Generally to do all such other acts and things as may be necessary or desirable to further the objects of the University

5. Colleges not to be affiliated to any other University.

No college imparting teachers education as approved by the National Council for Teachers Education within the University area shall be affiliated to any University other than the Tamil Nadu Teachers Education University.

6.

Visitation.

(1)

The Government shall have the right to cause an Inspection or Inquiry to be made, by such person or persons as they may direct, of the University, its buildings, libraries, museums, workshops and equipments and of any institution recognized and other work conducted or done by the University, and to cause an inquiry to be made in respect of any matter connected with the University. The Government shall, in every case, give notice to the University of their intention to cause such inspection or inquiry to be made and the University shall be entitled to be represented thereat.

(2)

The Government shall communicate to the Syndicate their views with reference to the results of such inspection or inquiry and may, after ascertaining the opinion of the Syndicate thereon, advise the University upon the action to be taken and fix a time limit for taking such action.

(3)

The Syndicate shall report to the Government the action, if any, which is proposed to be taken or has been taken, upon the result of such inspection or inquiry. Such a report shall be submitted within such time as the Government may direct.

(4)

Where the Syndicate does not take action to the satisfaction of the Government within a reasonable time, the Government may, after considering any explanation furnished or representation made by the Syndicate, issue such directions as they may think fit and the Syndicate shall comply with such directions. In the event of the Syndicate not complying with such directions within such time as may be fixed in that behalf by the Government, the Government shall have power to appoint any person or body to comply with such directions and make such orders as may be necessary for the expenses thereof.

### Chapter 3

#### Officers of The University

7.

#### Officers of University.

The University shall consists of the following officers, namely:-

(1)

The Chancellor

(2)

The Pro-Chancellor

(3)

The Vice-Chancellor

(4)

The Registrar

(5)

The Finance Officer

(6)

The Controller of Examination and

(7)

Such other persons as may be declared by the statutes to be officers of the University

8.

#### The Chancellor.

(1)

The Governor of Tamil Nadu shall be the Chancellor of the University. He shall, by virtue of his office, be the Head of the University and shall, when present, preside at any Convocation of the University and confer degrees and other academic distinctions upon persons entitled to receive them.

(2)

Where power is conferred upon the Chancellor to nominate persons to the authorities, the Chancellor shall, in consultation with the Vice-Chancellor, and to the extent necessary nominate persons to represent the interests not otherwise adequately represented.

(3)

The Chancellor may, of his own motion or on application, call for and examine the record of any officer or authority of University in respect of any proceedings to satisfy himself as to the regularity of such proceedings or the correctness, legality or propriety of any decision taken or order passed therein and, if, in any case, it appears to the Chancellor that any such decision or order should be modified, annulled, reversed or remitted for reconsideration, he may pass orders accordingly.

Provided that every application to the Chancellor for the exercise of the powers under this section shall be preferred within three months from the date on which the proceedings, decision or order to which the application relates was communicated to the applicant.

Provided further that no order prejudicial to any person shall be passed unless such person has been given an opportunity of making his representation.

(4)

No honorary degree or other distinction shall be conferred by the University upon any person without the prior approval of the Chancellor.

(5)

The Chancellor shall exercise such other powers and perform such other duties as may be conferred on him by or under this Act.

9.

The Pro-Chancellor.

(1)

The Minister-in-charge of the portfolio of Higher Education in the State of Tamil Nadu shall be the Pro-Chancellor of the University.

(2)

The Pro-Chancellor shall exercise such powers and perform such duties as may be conferred on him by or under this Act.

10.

The Vice-Chancellor.

(1)

Every appointment of the Vice-Chancellor shall be made by the Chancellor from out of a panel of three names recommended by the Committee referred to in sub-section (2) and such panel shall not contain the name of any member of the said Committee.

Provided that if the Chancellor does not approve any of the persons in the panel so recommended by the Committee, he may take steps to constitute another Committee in accordance with subsection (2) to give a fresh panel of three different names and shall appoint one of the persons named in the fresh panel as Vice-Chancellor.

(2)

For the purpose of sub-section (1), the Committee shall consist of three persons of whom one shall be nominated by the Chancellor, one shall be nominated by the Government and one shall be nominated by the Syndicate Provided that the person so nominated shall not be a member of any of the authorities of the University.

(3)

The holder of the post of Vice Chancellor shall be an academician, who shall have ?

(i)

experience of at least eight years as an University Professor of any University; or

(ii)

experience of at least fifteen years of service as Reader of any University or Reader of any affiliated college

(4)

The Vice-Chancellor shall hold office for a period of three years and shall be eligible for reappointment for a further period of three years.

Provided that the Vice-Chancellor may, by writing under his hand addressed to the Chancellor and after giving two months notice, resign his office.

Provided further that a person appointed as Vice-Chancellor shall retire from office if, during the term of his office or any extension thereof, he completes, the age of \*seventy years.

(5)

When any temporary vacancy occurs in the office of the Vice-Chancellor, or when the Vice-Chancellor is, by reason of illness, absence or for any other reason, unable to exercise the powers and perform the duties of his office, the senior most Professor of the University shall exercise the powers and perform the duties of the Vice-Chancellor till the Syndicate makes the requisite arrangements for exercising the powers and performing the duties of the Vice-Chancellor.

(6)

The Vice-Chancellor shall be a whole time officer of the University and his emoluments and other terms and conditions of service shall be as follows:-

(a)

There shall be paid to the Vice-Chancellor a fixed salary of twenty five thousand rupees per mensem or such higher salary as may be fixed by the Government from time to time, and he shall be entitled without payment of rent to the use of a furnished residence throughout his term of office, and no charge shall fall on the Vice-Chancellor personally in respect of the maintenance of such residence. He may be entitled to such other perquisites as may be provided in the statutes.

(b)

The Vice-Chancellor shall be entitled to such terminal benefits and allowances as may be fixed by the Syndicate with the approval of the Chancellor, from time to time.

Provided that, where an employee of-

(i)

The University; or

(ii)

Any other University or college or institution maintained by or affiliated to, that University, is appointed as Vice-Chancellor, he shall be allowed to continue to contribute to the Provident Fund to which he is a subscriber, and the Contribution of the University shall be limited to what he had been contributing immediately before his appointment as Vice-Chancellor

(c)

The Vice-Chancellor shall be entitled to traveling allowances at such rates as may be fixed by the Syndicate.

(d)

The Vice-Chancellor shall be entitled to earned leave on full pay at one-eleventh of the period spent by him in active service:

Provided that when the earned leave applied for by the Vice-Chancellor in sufficient time before that date of expiry of the term of his office, is refused by the Chancellor in the interest of the University and if he does not avail of the leave before the date of expiry of the term of his office, he shall be entitled to draw cash equivalent to leave salary after relinquishment of his office in respect of earned leave at his credit subject to a maximum of two hundred and forty days.

(e)

The Vice-Chancellor shall be entitled, on medical grounds or otherwise, to leave without pay for a period of not exceeding three months during the term of his office.

Provided that such leave may be converted into leave on full pay to the extent to which he is entitled to earned leave under clause (d).

11.

Powers and Duties of Vice-Chancellor.

(1)

The Vice-Chancellor shall be the academic head and the principal executive officer of the University and shall, in the absence of the Chancellor and the Pro-Chancellor preside at any convocation of the University and confer degrees and other academic distinctions upon persons entitled to receive them. He shall be a member ex-officio and Chairman of the Syndicate, Academic Council and the Finance Committee and shall be entitled to be present at, and to address, any meeting of any authority of the University but shall not be entitled to vote thereat, unless he is a member of the authority concerned.

(2)

It shall be the duty of the Vice-Chancellor to ensure that the provisions of this Act, statutes, ordinances, and regulations are observed and carried out and he may exercise all powers necessary for this purpose.

(3)

The Vice-Chancellor shall have power to convene meetings of the Syndicate, the Academic Council and the Finance Committee.

(4)

(a)

The Vice-Chancellor shall have power to take action on any matter and shall by order take such action as he may deem necessary but shall, as soon as may be, thereafter report the action taken to the officer or authority or body who or which would have ordinarily dealt with the matter:

Provided that no such order shall be passed unless the person likely to be affected has been given a reasonable opportunity of being heard.

(b)

When the action taken by the Vice-Chancellor under this subsection affects any person in the service of the University, such person shall be entitled to prefer an appeal to the Syndicate within thirty days from the date on which he has notice of such action. The Vice-Chancellor shall give effect to the order passed by the Syndicate on such appeal.

(5)

The Vice-Chancellor shall give effect to the orders of the Syndicate regarding the appointment, suspension and dismissal of the teachers and other employees of the University and any other decision of the Syndicate.

(6)

The Vice-Chancellor shall exercise control over the affairs of the University and shall be responsible for the due maintenance of discipline in the University.

(7)

The Vice-Chancellor shall be responsible for the coordination and integration of teaching and research, extension education and curriculum development.

(8)

The Vice-Chancellor shall exercise such other powers and perform such other duties as may be prescribed by the statutes.

12.

The Registrar.

(1)

The Registrar shall be a whole-time salaried officer of the University appointed by the Syndicate. The qualifications and the method of recruitment shall be such as may be prescribed. The terms and conditions of service of the Registrar shall be as follows:

(a)

The holder of the post of Registrar shall satisfy the norms prescribed by the University Grants Commission.

(b)

The Registrar shall hold office for a period of three years:

Provided that the Registrar shall retire on attaining the age of sixty years in the case of academician and fifty eight years in the case of non-academician or on the expiry of the period specified in this clause, whichever is earlier.

(c)

The emoluments and other terms and conditions of service of the Registrar shall be such as may be prescribed

(d)

When the office of the Registrar is vacant or when the Registrar is, by reason of illness, absence or for any other cause, unable to perform the duties of his office, the duties of the office of the Registrar shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(2)

(a)

The Registrar shall have power to take disciplinary action against such of the employees, excluding teachers of the University and academic staff, as may be specified in the orders of the Syndicate and to suspend them pending inquiry, to administer warnings to them or to impose on them the penalty of censure or withholding of increments:

Provided that no such penalty shall be imposed unless the person concerned has been given a reasonable opportunity of showing cause against the action proposed to be taken against him.

(b)

An appeal shall lie to the Vice-Chancellor against any order of the Registrar imposing any of the penalties specified in clause (a).

(c)

In any case where the inquiry discloses that penalty beyond the powers of the Registrar is called for, the Registrar shall, upon conclusion of the inquiry, make a report to the Vice-Chancellor along with his recommendations:

Provided that an appeal shall lie to the Syndicate against an order of the Vice-Chancellor imposing any penalty.

(d)

No appeal under clause (b) or clause (c) shall be preferred after the expiry of sixty days from the date on which the order appealed against was received by the applicant.

(3)

The Registrar shall be the ex-officio Secretary to the Syndicate, the Academic Council, the Faculties and the Boards of Studies, but shall not be deemed to be a member of any of these authorities.

(4)

It shall be the duty of the Registrar:-



(a)

To be the custodian of the records, the common seal and such other property of the University as the Syndicate shall commit to his charge;

(b)

To issue all notice, convening meetings of the Academic Council, the Syndicate, the Faculties, the Boards of Studies and of any Committee appointed by the authorities of the University;

(c)

To keep the minutes of all the proceedings of the meetings of the Academic Council, the Syndicate, the Faculties, the Boards of Studies and of any Committee appointed by the authorities of the University;

(d)

To conduct the official correspondence of the Syndicate;

(e)

To supply to the Chancellor copies of the agenda of the meetings of the authorities of the University as soon as they are issued and the minutes of the proceedings of such meetings; and

(f)

To exercise such other powers and perform such other duties as may be specified in the statutes, the ordinances or the regulations or as may be required, from time to time, by the Syndicate or the Vice-Chancellor.

(5)

In all suits and other legal proceedings by or against the University, the pleadings shall be signed and verified by the Registrar and all processes in such suits and proceedings shall be issued to, and served on, the Registrar

13.

The Finance Officer.

(1)

The Finance Officer shall be a whole-time salaried officer of the University appointed by the Syndicate for such period as may be specified by the Syndicate in this behalf.

(2)

Every appointment of the Finance Officer shall be made by the Syndicate from out of a panel of three names of officers not below the rank of Joint Director of Local Fund Accounts or Under Secretary to Government in the Finance Department, recommended by the Government.

(3)

The emoluments and other terms and conditions of service of the Finance Officer shall be such as may be prescribed by the ordinances.

(4)

The Finance Officer shall retire on attaining the age of fifty-eight years or on the expiry of the period specified by the Syndicate under sub-section (1), whichever is earlier.

(5)

When the office of the Finance Officer is vacant or when the Finance Officer, is by reason of illness, absence or for any other cause, unable to perform the duties of his office, the duties of the Finance Officer shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(6)

The Finance Officer shall be the ex-officio Secretary to the Finance Committee, but shall not be deemed to be a member of such Committee.

(7)

The Finance Officer shall,-

(a)

Exercise general supervision over the funds of the University and shall advise the University as regards its financial policy; and

(b)

Exercise such other powers and perform such other financial functions, as may be assigned to him by the Syndicate or as may be prescribed:

Provided that the Finance Officer shall not incur any expenditure or make any investment exceeding such amount as

may be prescribed without the previous approval of the Syndicate.

(8)

Subject to the control of the Syndicate, the Finance Officer shall,-

(a)

Hold and manage the property and investment on the University including trust and endowed property;

(b)

Ensure that the limit fixed by the Syndicate for recurring and non-recurring expenditure for a year are not exceeded and that all moneys are expended on the purposes for which they are granted or allotted;

(c)

Be responsible for the preparation of annual accounts, financial estimates and the budget of the University and for their presentation to the Syndicate;

(d)

Keep a constant watch on the cash and bank balance and of investments;

(e)

Watch the progress of the collection of revenue and advise on the methods of collection employed;

(f)

Ensure that the registers of buildings, lands, furniture and equipments are maintained up to date and that stock checking is conducted, of equipments and other consumable materials in all offices, special centers maintained by the University;

(g)

Bring to the notice of the Vice-Chancellor any unauthorized expenditure or other financial irregularity and suggest appropriate action to be taken against person at fault, and

(h)

Call from any office and center, maintained by the University, any information or returns that he may consider necessary for the performance of his duties.

(9)

The receipt of the Finance Officer or of the person or persons duly authorized in this behalf by the Syndicate for any money payable to the University shall be a sufficient discharge for payment of such money.

14.

The Controller of Examinations.

(1)

The Controller of Examinations shall be a whole-time salaried officer of the University appointed by the Syndicate for such period and on such terms and conditions as may be prescribed.

(2)

The holder of the post of Controller of Examinations shall satisfy the norms prescribed by the University Grants Commission.

(3)

The Controller of Examinations shall exercise such powers and perform such duties as may be prescribed.

15.

Vice-Chancellor and other Officers, etc., to be Public Servants.

The Vice-Chancellor, the Registrar, the Finance Officer, the Controller of Examinations and other employees of the University shall be deemed, when acting or purporting to act in pursuance of any of the provisions of this Act, to be public servants within the meaning of section 21 of the Indian Penal Code.

#### Chapter 4

#### Authorities of The University

16.

Authorities of the University.

(1)

The authorities of the University shall be the following, namely:-

(1)

The Syndicate

(2)

The Academic Council

(3)

The Finance Committee

(4)

The Board of Studies; and

(5)

Such other bodies as may be declared by the statutes to be the authorities of the University

17.

Disqualification for membership.

(1)

No person shall be qualified for election or nomination as a member of any of the authorities of the University, if on the date of such election or nomination he is-

(a)

of unsound mind or

[ a deaf-mute; Omitted by Tamil Nadu Universities Laws (Third Amendment) Act, 2022]

or

(b)

An applicant to be adjudicated as an insolvent or an undischarged insolvent, or

(c)

Sentenced by a criminal court to imprisonment for any offense involving moral turpitude,

(2)

In case of dispute or doubt, the Syndicate shall determine whether a person is disqualified under sub-section (1) and its decision shall be final.

18.

Disqualification for election or nomination to Syndicate and Academic Council in certain cases.

(1)

Notwithstanding anything contained in section 19 and 22, no person who has held office as a member for a total period of six years in the Syndicate or the Academic Council or in both, of the University shall be eligible for election or nomination to either of the said two authorities:

Provided that for the purpose of computing the total period of six years referred to in this subsection, the period of three years during which a person held office in one authority either by election or by nomination and the period of three years during which he held office in another authority either by election or by nomination shall be taken into account and accordingly such person shall not be eligible for election or nomination to either Syndicate or the Academic Council:

Provided further that for the purpose of this subsection, if a person who has held office for a period not less than one year in any one of the authorities referred to in this subsection in a casual vacancy shall be deemed to have held office for a period of three years in that authority:

Provided also that for the purpose of this subsection, if a person was elected or nominated to one authority and such person becomes a member of another authority by virtue of the membership in the first mentioned authority, the period for which he held office in the first mentioned authority alone shall be taken into account.

(2)

Nothing in sub-section (1) shall have application in respect of -

(i)

ex-officio members referred to in section 19;

(ii)

ex-officio members referred to in section 22, but not including members of the Syndicate who are not otherwise members of the Academic Council referred to in item (e) in sub-section (1) of section 22.

19.

The Syndicate.

(1)

The Chancellor shall, as soon as may be, after the first Vice-Chancellor is appointed under section 51, constitute the Syndicate.

(2)

The Syndicate shall, in addition to the Vice-Chancellor, consist of the following members, namely:-

Class I - Ex-Officio Members

(a)

The Secretary to Government, in-charge of Higher Education

(b)

The Secretary to Government, in-charge of Finance

(c)

The Secretary to Government, in-charge of Law

(d)

The Secretary to Government, in-charge of School Education

(e)

Director of Collegiate Education; and

(f)

The Director of Teachers Education, Research and Training

Class II - Other Members

(a)

One member from among the Chairperson of the Faculties nominated by the Chancellor on the recommendation of the Vice-Chancellor;

(b)

One member from among the Professors and Heads of the Departments of the Government Teacher Training Colleges nominated by the Chancellor on the recommendation of the Government.

(c)

Two members from among the Principals of the affiliated colleges nominated by the Chancellor on the recommendation of the Government;

(d)

Two members from among the managements of the affiliated colleges, nominated by the Chancellor on the recommendation of the Government;

(e)

One member elected by the Members of the Legislative Assembly of the State from among themselves;

(f)

one member nominated from educationists by the Government; and

(g)

One member nominated from eminent educationists to be nominated by Chancellor.

(3)

The Vice-Chancellor shall be the ex-officio Chairperson of the Syndicate.

(4)

In case the Secretary to Government, in-charge of Higher Education, or the Secretary to Government, in-charge of Finance, or the Secretary to Government, in-charge of Law, or the Secretary to Government, in-charge of School Education, is unable to attend the meetings of the Syndicate for any reason, he may depute any Officer of his department, not lower in rank than that of Deputy Secretary to Government, to attend the meetings.

(5)

(a)

Save as otherwise provided, the members of the Syndicate, other than the ex-officio members, shall hold office for a period of three years and such members shall be eligible for election or nomination for another period of three years.

(b)

Where a member is elected or nominated to the Syndicate in a casual vacancy, the period of office held for not less than one year by any such member shall be construed as a full period of three years:

Provided that a member of the Syndicate who is elected or nominated in his capacity as a member of a particular electorate or body, or the holder of a particular appointment, shall cease to be a member of the Syndicate from the date on which he ceases to be a member of that electorate or body, or the holder of that appointment, as the case may be:

Provided further that where an elected or nominated member of the Syndicate is appointed temporarily to any of the offices by virtue of which he is entitled to be a member of the Syndicate ex-officio, he shall, by notice in writing signed by him and communicated to the Vice-Chancellor within seven days from the date of his taking charge of his appointment, choose whether he will continue to be a member of the Syndicate by virtue of his election or nomination or whether he will vacate office as such member and become a member ex-officio by virtue of his appointment and the choice shall be conclusive. On failure to make such a choice, he shall be deemed to have vacated his office as an elected or a nominated member.

(6)

When a person ceases to be a member of the Syndicate, he shall cease to be a member of any of the authorities of the University of which he may happen to be a member by virtue of his membership of the Syndicate.

(7)

The members of the Syndicate shall not be entitled to receive any remuneration from the University except such daily and traveling allowances as may be prescribed:

Provided that nothing contained in this subsection shall preclude any member from drawing his normal emoluments to which he is entitled by virtue of the office he holds.

(8)

A member of the Syndicate, other than an ex-officio member, may tender resignation of his membership at any time before the term of his office expires. Such resignation shall be conveyed to the Chancellor by a letter in writing by the member, and the resignation shall take effect from the date of its acceptance by the Chancellor.

20.

Powers of Syndicate.

(1)

The Syndicate shall have the following powers, namely:-

(a)

to make statutes and amend or repeal the same;

(b)

to make ordinances and amend or repeal the same;

(c)

to cooperate with other Universities, other academic authorities and colleges in such manner and for such purposes as it may determine;

(d)

to provide for instruction and training in teachers education as it may think fit;

(e)

to provide for research and advancement in teachers education;

(f)

to institute Lectureships, Readerships, Professorships and any other teaching posts required by the University;

(g)

to prescribe the conditions for affiliating colleges to the University and to withdraw affiliation from colleges and also to specify the academic year in relation to such colleges

(h)

to provide for such lectures and instructions for students of University colleges and affiliated colleges as the Academic Council may determine.

(i)

to provide for the inspection of all colleges and hostels;

(j)

to institute degrees, and other academic distinctions in teachers education;

(k)

to confer degrees, on persons who -

(i)

Have pursued an approved course of study in University college or in an affiliated college or have been exempted therefrom in the manner prescribed and have passed the prescribed examinations of the University;

- (ii)  
Have carried on research under conditions prescribed;
- (l)  
to confer honorary degrees or academic distinctions on the recommendations of not less than two-third of the members of the Syndicate;
- (m)  
to establish and maintain hostels;
- (n)  
to institute fellowships, traveling fellowships, scholarships, studentships, bursaries, exhibitions, medals and prizes;
- (o)  
to prescribe the fees to be charged for the affiliation of colleges, for admission to the examinations, degrees, of the University for the registration of graduates, for the renewal of such registration and for all or any of the purposes specified in section 4;
- (p)  
to consider and take such action as it may deem fit on the annual report, the annual accounts and the financial estimates;
- (q)  
to institute a University Extension Board and to maintain it;
- (r)  
to institute publication bureau, students' unions, employment bureau and University athletic clubs and to maintain them;
- (s)  
to enter into any agreement with the Central or any State Government or with a private management for assuming the management of any institutions and for taking over its properties and liabilities or for any other purposes not repugnant to the provisions of this Act;
- (t)  
to make statutes regulating the method of election to the authorities of the University and the procedure at the meeting of the Academic Council, Syndicate and other authorities of the University and quorum of members required for the transaction of business by the authorities of the University other than the Academic Council;
- (u)  
to hold, control and administer the properties and funds of the University;
- (v)  
to direct the form, custody and use of the common seal of the University;
- (w)  
to regulate and determine all matters concerning the University in accordance with this Act, the statutes, the ordinances and the regulations;
- (x)  
to administer all properties and funds placed at the disposal of the University for specific purposes;
- (y)  
(i)  
to appoint the University Lecturers, University Assistant Professors, University Readers, University Professors and the teachers of the University, fix their emoluments, if any, define their duties and the conditions of their services and provide for filling up of temporary vacancies;
- (ii)  
to prescribe the mode of appointment of administrative and other similar posts and fix their emoluments, if any, define their duties and the conditions of their services and provide for filling up of temporary vacancies;
- (z)  
to suspend and take disciplinary action on the University Lecturers, University Assistant Professors, University Readers, University professors and the Teachers and other employees of the University;
- (aa)  
to accept, on behalf of the University, endowments, bequests, donations, grants and transfers of any movable and immovable properties made to it;

(ab)

(i)

to raise, on behalf of the University, loans from the Central or any State Government or the public or any corporation owned or controlled by the Central or any State Government; and

(ii)

to borrow money, with the approval of the Government, on the security of the property of the University for the purposes of the University.

(ac)

to affiliate colleges within the University area to the University;

(ad)

to recognize hostels not maintained by the University and to suspend or withdraw recognition of any hostel which is not conducted in accordance with the ordinance and the conditions imposed thereunder;

(ae)

to arrange for and direct, the inspection of all University colleges affiliated colleges and hostels;

(af)

to prescribe the qualifications of teachers in University colleges, and hostels;

(ag)

to award fellowships, traveling fellowships, scholarships, studentships, bursaries, exhibitions, medals and prizes in accordance with the statutes;

(ah)

to charge and collect such fees as may be prescribed;

(ai)

to conduct the University examinations and approve and publish the results thereof;

(aj)

to make ordinances regarding the admission of students to the University or prescribing examinations to be recognized as equivalent to University examinations;

(ak)

to appoint members to the Board of Studies;

(al)

(i)

to appoint examiners, after consideration of the recommendation of the Board of Studies; and

(ii)

to fix their remuneration;

(am)

to supervise and control the residence and discipline of the students of the University departments and make arrangements for securing their health and well-being;

(an)

to institute and manage University centers, University colleges and laboratories, libraries, museums, institutes of research and other institutions;

(ao)

to manage hostels instituted by the University;

(ap)

to regulate the working of the University Extension Board;

(aq)

to manage any publication bureau, students unions, employment bureau and University athletic clubs instituted by the University;

(ar)

to review the instruction and teaching of the University;

(as)

to promote research within the University and to require reports, from time to time, of such research;

(at)

to exercise such other powers and perform such other duties as may be conferred or imposed on it by this Act or the statutes, ordinances and regulations; and

(au)

to delegate any of its powers to the Vice-Chancellor, to a committee from among its own members or to a committee appointed in accordance with the statutes.

(2)

The Syndicate may consult the Academic Council in respect of any matter where it considers such consultation is necessary.

21.

Meetings of Syndicate.

(1)

The Syndicate shall meet at least once in every two months at such time and places and shall, subject to the provisions of subsections (2) and (3) observe such rules of procedure in regard to transaction of business at its meetings including the quorum at meetings as may be prescribed.

(2)

The Vice-Chancellor or in his absence any member chosen by the members present shall preside at a meeting of the Syndicate.

(3)

All questions at any meeting of the Syndicate shall be decided by a majority of the votes of the members present and voting and in the case of an equality of votes, the Vice-Chancellor or the member presiding, as the case may be, shall have and exercise a second or casting vote.

(4)

(a)

The Syndicate may, for the purpose of consultation, invite any person having special knowledge or practical experience in any subject under consideration to attend any meeting. Such person may speak in, and otherwise take part in the proceedings of such meeting but shall not be entitled to vote.

(b)

The person so invited shall be entitled to such daily and traveling allowances as are admissible to a member of the Syndicate.

22.

The Academic Council.

(1)

The Academic Council shall consist of the following members, namely:-

Class I - Ex-Officio Members

(a)

The Vice-Chancellor;

(b)

The Chairmen of the Faculties

(c)

Two members from Government and eight members from Government aided Teachers Training Colleges nominated by Government by rotation CLASS II - OTHER MEMBERS

(a)

Eight members from among the Professors of the University, nominated by the Chancellor on the recommendation of the Vice-Chancellor;

(b)

Fifteen members from among the Principals of the unaided affiliated colleges, nominated by the Chancellor on the recommendations of the Government by rotation;

(c)

Three educationists having proficiency in matters relating to education, research and educational administration, nominated by the Chancellor on the recommendations of the Government;

(d)



Three persons of eminence nominated by the Chancellor on the recommendations of the Vice-Chancellor.

(e)

Members of the Syndicate not included in any of the above items;

Provided that any Chairperson of a Board of Studies may be invited to attend a meeting if his special knowledge may be of relevance to the items for discussion at the meeting.

(2)

(i)

In case the Secretary to Government, in-charge of Higher Education, or the Secretary to Government, in-charge of Finance or Secretary to Government, in-charge of School Education or the Secretary to Government, in-charge of Law, who is a member of the Academic Council, by virtue of item (e) under clause II - Other Members in sub-section (1) is unable to attend the meetings of the Academic Council for any reason, he may depute any Officer of his department, not lower in rank than that of Deputy Secretary to Government, to attend the meetings;

(3)

(a)

Save as otherwise provided, elected and nominated members of the Academic Council shall hold office for a period of three years and such members shall be eligible for election or nomination for another period of three years.

(b)

Where a member is elected or nominated to the Academic Council to a casual vacancy, the period of office held for not less than one year by any such member shall be construed as a full period of three years;

Provided that a member of the Academic Council who is elected or nominated in his capacity as a member of a particular electorate or body or the holder of a particular appointment, shall cease to be a member of the Academic Council from the date on which he ceases to be a member of that electorate or body, or the holder of that appointment, as the case may be;

Provided further that where an elected or a nominated member of the Academic Council is appointed temporarily to any of the offices by virtue of which he is entitled to be a member of the Academic Council ex-officio, he shall, by notice in writing signed by him and communicated to the Vice-Chancellor within seven days from the date of his taking charge of his appointment, choose whether he will continue to be member of the Academic Council by virtue of his election or nomination or whether he will vacate office as such member and become a member ex-officio by virtue of his appointment and the choice shall be conclusive. On failure to make such a choice, he shall be deemed to have vacated his office as an elected or a nominated member.

(4)

When a person ceases to be a member of the Academic Council, he shall cease to be a member of any of the authorities of the University of which he may happen to be a member by virtue of his membership of the Academic Council.

(5)

The members of the Academic Council shall not be entitled to receive any remuneration from the University except such daily and traveling allowances as may be prescribed;

Provided that nothing contained in this subsection shall preclude any member from drawing his normal emoluments to which he is entitled by virtue of the office he holds.

(6)

A member of the Academic Council other than an ex-officio member, may tender resignation of his membership at any time before the term of his office expires. Such resignation shall be conveyed to the Chancellor by a letter in writing by the member and the resignation shall take effect from the date of its acceptance by the Chancellor.

23.

Powers and Functions of the Academic Council.

(1)

The Academic Council shall be the principal academic body of the University and shall subject to the provisions of the Act and the statutes have the control and general regulation of teaching and examination in the University and be responsible for the maintenance of the standards thereon. In addition, it shall also act as the body to review the broad policies and programmes of the University.

(2)

The Academic Council shall have the following powers and functions as the principal academic body of the University:-

- (a)  
To exercise general control on teaching and other educational programmes and maintain and promote the standards thereof;
  - (b)  
To make regulations and amend or repeal the same
  - (c)  
To make regulations
    - (i)  
regarding the admission of students to the University and the number of students to be admitted;
    - (ii)  
regarding the courses of study leading to degrees, and other academic distinctions;
    - (iii)  
regarding the conduct of examinations and maintenance and promotion of standards of education.
    - (iv)  
prescribing equivalence of examinations, degrees, of other Universities;
  - (v)  
for the assessment, evaluation and grading of students performance;
  - (d)  
To advise the Syndicate on all academic matters including the control and management of libraries;
  - (e)  
To make recommendations to the Syndicate for the institution of Professorship, Readership, Lectureship and other teaching posts including posts in research and in regard to the duties and emoluments thereof
  - (f)  
To formulate, modify or revise schemes for the constitution or reconstitution of departments of teaching and research;
  - (g)  
To make recommendations to the Syndicate regarding post graduate teaching and research;
  - (h)  
To make recommendations to the Syndicate regarding the qualifications to be prescribed for teaching in the University;
  - (i)  
To make recommendations to the Syndicate for the conferment of honorary degrees or other distinctions;
  - (j)  
To review and act upon the proposals of Boards of Studies in formulating rules, regulations, syllabi and methods of evaluation, introduction of new courses and modification of existing courses;
  - (k)  
To make recommendations to the Syndicate regarding institution of fellowships and scholarships;
  - (l)  
To delegate to the Vice-Chancellor or to any of the Committees of the Academic Council, any of its powers; and
  - (m)  
To assess and make recommendations laying down standards of accommodation, equipment, apparatus, library, maintenance and other physical facilities required for each faculty
- (3)  
Subject to the other provisions of this Act, the Academic Council in its capacity as a reviewing body shall have the following powers and functions, namely;
- (a)  
To review, from time to time, the broad policies and programmes of the University and to suggest measures for the improvement and development of the University.
  - (b)  
To advise the Chancellor in respect of any matter, which may be referred to it for advice; and
  - (c)  
To exercise such other powers and perform such other functions as may be prescribed by the statutes.

24.

Meetings of the Academic Council.

(1)

The Academic Council shall meet at least twice in every year on dates to be fixed by the Vice-Chancellor. One of such meetings shall be called the annual meeting. The Academic Council may also meet at such other times as it may, from time to time, determine.

(2)

One third of the total strength of the members of the Academic Council shall be the quorum required for a meeting of the Academic Council.

Provided that such quorum shall not be required at a convocation of the University, or a meeting of the Academic Council held for the purpose of conferring degrees or other academic distinctions.

(3)

The Vice-Chancellor may, whenever he thinks fit, and shall upon a requisition in writing signed by not less than fifty percent of the total members of the Academic Council, convene a special meeting of the Academic Council.

25.

The Finance Committee.

(1)

The Finance Committee shall consist of the following members, namely:-

(a)

Vice-Chancellor;

(b)

Secretary to Government, in-charge of Finance

(c)

Secretary to Government, in-charge of Higher Education;

(d)

Three members nominated by the Syndicate from among its members of whom one shall be a Professor and one shall be a person nominated to the Syndicate by the Chancellor.

(2)

If for any reasons the Secretary to Government, Finance Department or the Secretary to Government, Higher Education Department is unable to attend the meetings of the Finance Committee, he may depute any officer of his department not lower in rank than that of the Deputy Secretary to Government.

(3)

The Vice-Chancellor shall be the ex-officio Chairperson and the Finance Officer shall be the ex-officio Secretary to the Finance Committee.

(4)

All the members of the Finance Committee, other than the ex-officio members, shall hold office for a period of three years.

(5)

The Finance Committee shall meet at least twice in every year to examine the accounts and to scrutinize proposals for expenditure.

(6)

The annual accounts of the University prepared by the Finance Officer shall be laid before the Finance Committee for consideration and comments and thereafter submitted to the Syndicate for approval.

(7)

The Finance Committee shall recommend limits for the total recurring expenditure and the total non-recurring expenditure for the year based on the income and resources of the University.

(8)

The Finance Committee shall -

(a)

review the financial position of the University from time to time;

(b)

make recommendations to the Syndicate on every proposal involving investment or expenditure for which no provision has been made in the annual financial estimates or which involves expenditure in excess of the amount provided for in the annual financial estimates.

(c)

Prescribe the methods and procedure and forms for maintaining the accounts of the University, its departments and its constituent colleges;

(d)

Make recommendations to the Syndicate on all matters relating to the finances of the University; and

(e)

Perform such other functions as may be prescribed.

(9)

The financial estimates of the University prepared by the Finance Officer shall be laid before the Finance Committee for consideration and comments. The said estimates, as modified by the Finance Committee, shall then be laid before the Syndicate for consideration. The Syndicate may accept the modifications made by the Finance Committee.

26.

The Planning Board.

(1)

There shall be constituted a Planning Board of the University which shall advise generally on the planning and development of the University and review the standard of education and research in the University.

(2)

The Planning Board shall consist of the following members, namely:-

(a)

the Vice-Chancellor, who shall be the ex-officio Chairperson of the Board; and

(b)

not more than eight persons of high academic standing.

(3)

The members of the Planning Board shall be appointed by the Chancellor on the recommendations of the Vice-Chancellor and shall hold office for such period as he may determine.

(4)

The Planning Board shall, in addition to all other powers vested in it by this Act, have the right to advise the Syndicate and the Academic Council on any academic matter.

27.

Board of Studies There shall be a Board of Studies attached to each Department of teaching.

The constitution and powers of the Board of Studies shall be such as may be prescribed.

28.

Constitution and Functions of Faculties.

(1)

The University having regard to the objectives and its functions, may constitute such Faculties as may be prescribed by statutes.

(2)

The constitution and function of the Faculties shall, in all other respects, be such as may be prescribed by statutes.

(3)

Each faculty shall comprise such departments of teaching as may be prescribed in the statutes.

29.

Constitution of Other Authorities. -

The constitution and powers of such other bodies, as may be declared by the statutes to be authorities of the University, shall be such as may be prescribed.

Chapter 5

Statutes, Ordinances and Regulations

30.

Statutes.

Subject to the provisions of this Act, the statutes may provide for all or any of the following matters, namely:-

- (1)  
The holding of convocation to confer degrees;
- (2)  
The conferment of honorary degrees and academic distinctions;
- (3)  
The constitution, powers and functions of the authorities of the University;
- (4)  
The manner of filling vacancies among members of the authorities;
- (5)  
The allowances to be paid to the members of the authorities and committees thereof;
- (6)  
The procedure at meetings of authorities including the quorum for the transaction of business at such meetings;
- (7)  
The authentication of the orders or decisions of the authorities;
- (8)  
The formation of departments of teaching at the affiliated colleges;
- (9)  
The term of office and methods of appointment and conditions of service of the officers of the University other than the Chancellor and the Pro-Chancellor;
- (10)  
The qualifications of the persons employed by the University;
- (11)  
The classifications, the method of appointment and determination of the terms and conditions of service of persons employed by the University;
- (12)  
The institution of pension, gratuity, insurance or provident fund for the benefit of the persons employed by the University;
- (13)  
The institution of fellowships, traveling fellowships, scholarships, studentships, bursaries, exhibitions, medals and prizes and the conditions of award thereof;
- (14)  
The establishment and maintenance of halls and hostels;
- (15)  
The conditions for residence of students of the University in the halls and hostels and the levy of fees and other charges for such residence;
- (16)  
The conditions of affiliation to the University of affiliated colleges;
- (17)  
The delegation of powers vested in the authorities or officers of the University; and
- (18)  
Any other matter which is required to be or may be prescribed by the statutes.

31.

Statutes how made.

- (1)  
The Syndicate may, from time to time, make statutes and amend or repeal the statutes in the manner hereafter provided in this section.
- (2)  
The Academic Council may propose to the Syndicate the draft of any statute or of any amendment to, or of repeal of, a statute, to be passed by the Syndicate and such draft shall be considered by the Syndicate at its next meeting.
- (3)  
The Syndicate may consider the draft proposed by the Academic Council under sub-section (2) and may either pass the

draft or reject or return it with or without amendments to the Academic Council for reconsideration.

(4)

(a)

Any member of the Syndicate may propose to the Syndicate the draft of a statute or of any amendments to, or of repeal of, a statute and the Syndicate may either accept or reject the draft, if it relates to matter not falling within the purview of the Academic Council.

(b)

In case such draft relates to a matter within the purview of the Academic Council, the Syndicate shall refer it for consideration to the Academic Council, which may either report to the Syndicate that it does not approve the draft or submit the draft to the Syndicate in such form as the Academic Council may approve and the Syndicate may either pass without amendments or reject the draft.

(5)

A statute or an amendment to, or repeal of, a statute passed by the Syndicate shall be submitted to the Chancellor who may assent thereto or withhold his assent. A statute or an amendment to, or repeal of, a statute passed by the Syndicate shall have no validity until it has been assented to by the Chancellor.

32.

Ordinances.

Subject to the provisions of this Act and the statutes, the ordinances may provide for all or any of the following matters, namely: -

(a)

the admission of the students to the colleges and the levy of fees;

(b)

the courses of study leading to all degrees and other academic distinctions of the University;

(c)

the conditions of residence of students and the levy of fees for residence in hostels;

(d)

the conditions of recognition of hostels not maintained by the University

(e)

the conditions under which the students shall be admitted to the courses of study leading to degrees and other academic distinctions of the University;

(f)

the conduct of examinations of the University and the conditions on which students shall be admitted to such examinations;

(g)

the manner in which exemption relating to the admission of students to examinations may be given;

(h)

the conditions and mode of appointment and duties of examining bodies and examiners;

(i)

the maintenance of discipline among the students of the University

(j)

the fees to be charged for courses of study, research, experiment and practical training and for admissions to the examinations for degrees and other academic distinction of the University

(k)

the qualifications and emoluments of teachers;

(l)

the conditions subject to which persons who may hereafter be permanently employed may be recognized as qualified to give instruction in affiliated colleges and hostels; and

(m)

any other matter which by this Act or the statutes is required to be or may be prescribed by the ordinances.

33.

Ordinances how made.

(1)  
Save as otherwise provided in this section, ordinances shall be made by the Academic Council.

(2)  
All ordinances made by the Academic Council shall have effect from such date as may be fixed by the Academic Council, but every ordinance so made shall be submitted as soon as may be after it is made to the Syndicate and shall be considered by the Syndicate at its next meeting.

(3)  
The Syndicate shall have power by a resolution passed by a majority or not less than two-thirds of the members present at such meeting, to modify or cancel any such ordinance and such ordinance shall from the date of such resolution have effect in such modified form or be of no such effect, as the case may be.

34.  
Regulations how made.

(1)  
The Syndicate and the Academic Council may make regulations consistent with the provisions of this Act, the Statutes and the ordinances, for all or any of the matters which by this Act and the Statutes and ordinances are to be provided for by regulations and also for any other matter solely concerning such authorities.

(2)  
All such regulations shall have effect from such date as the Syndicate or the Academic Council, as the case may be, may appoint on that behalf.

(3)  
Each of the authorities referred to in sub-section (1) shall make regulations providing for the giving of notice to the members thereof of the date of meeting and of the business to be considered at the meetings and for the keeping of the proceedings of the meetings.

(4)  
The Syndicate may direct the amendment in such manner as it may specify any regulation made under this section or the annulment of any regulation made thereunder by itself or by the Academic Council.

#### Chapter 6

#### Admissions and Residences of Students

35.  
Admission University Courses.

(1)  
The University shall, subject to the provisions of this Act and the statutes, be open to all persons.

(2)  
Nothing contained in sub-section (1) shall require the University -

(a)  
to admit to any course of study any person who does not possess the prescribed academic qualification or standard;

(b)  
to retain on the rolls of the University any student whose academic record is below the minimum standard required for the award of a degree, diploma or other academic distinction; or

(c)  
to admit any person or retain any student whose conduct is prejudicial to the interests of the University or the rights and privileges of the other students and teachers

(3)  
Every candidate for a University examination shall, unless exempted from the provisions of sub-section (2) by a special order of the Syndicate made on the recommendation of the Academic Council be enrolled as a member of an affiliated college. Any such exemption may be made subject to such conditions as the Syndicate may think fit.

(4)  
Students exempted from the provisions of sub-section (2) and students admitted in accordance with the conditions prescribed, to courses of study other than courses of study for a degree, shall be non-collegiate students of the University.

36.

Admission to University Examination.

No candidate shall be admitted to any examination of the University unless he is enrolled as a member of an affiliated college and has satisfied the requirements as to the Attendance required under the regulations for the same or unless he is exempted from such requirements of enrolment or attendance or both by an order of the Academic Council made under the regulations prescribed. Exemptions granted under this section shall be subject to such conditions as the Syndicate may think fit.

37.

Attendance qualifying for University Examinations.

No attendance at instruction given in any college or institution, other than that conducted, affiliated or approved by the University, shall qualify for admission to any examination of the University.

38.

Residence and Hostels.

Every student of the University other than a non-collegiate student shall be required to reside in a hostel or under such other conditions as may be prescribed.

Chapter 7

University Funds

39.

General Fund.

The University shall have General Fund to which shall be credited -

(a)

its income from fees, grants, donations and gifts, if any;

(b)

any contribution or grant made by the Central Government or any State Government or any local authority or the University Grants Commission or any other similar body or any corporation owned or controlled by the Central or any State Government;

(c)

endowments and other receipts; and

(d)

the money borrowed by it

Chapter 8

Condition of Service

40.

Pension Gratuity, etc.

(1)

The University shall institute for the benefit of its officers, and other persons employed by the University, such pension, gratuity, insurance and provident fund as it may deem fit, in such manner and subject to such conditions as may be prescribed.

(2)

Where the University has so instituted a provident fund under sub-section (1) the Government may declare that the provisions of the Provident Funds Act, 1925, shall apply to such funds as if the University were a local authority and the fund a Government Provident Fund.

(3)

The University may, in consultation with the Finance Committee, invest the Provident Fund in such a manner as it may determine.

41.

Conditions of Service.

Subject to the provisions of this Act, the appointment, procedure for selection, pay and allowances and other conditions of service of officers, and other persons employed in the University shall be such as may be prescribed.

Explanation. - For the purpose of this section, the word "officers" shall not include the Chancellor and the Pro - Chancellor.

42.



Selection Committee.

(1)

Three shall be a Selection Committee for making recommendations to the Syndicate for appointment to the posts of Professor, Assistant Professor, Reader, Lecturer and Librarian of the University.

(2)

The Selection Committee for appointment to the posts specified in sub-section(1) shall consist of the Vice-Chancellor, a nominee of the Chancellor, a nominee of the Government and such other persons as may be prescribed.

Provided that the selection for such appointment by the Selection Committee shall be made in accordance with the guidelines that may be issued by the University Grants Commission or the Government in relation to such appointment.

(3)

The Vice-Chancellor shall preside at the meetings of a Selection Committee.

(4)

The meetings of a Selection Committee shall be convened by the Vice-Chancellor.

(5)

The procedure to be followed by a Selection Committee in making recommendations shall be laid down in the ordinances.

(6)

If the Syndicate is unable to accept the recommendations made by a Selection Committee, it shall record its reasons and submit the case to the Chancellor for final orders.

(7)

Appointments to temporary posts shall be made in the manner indicated below:-

(i)

If the temporary vacancy is for a duration longer than one academic session, it shall be filled on the advice of the Selection Committee.

Provided that if the Vice Chancellor is satisfied that in the interest of work it is necessary to fill the vacancy, the appointment may be made on a temporary basis by a local Selection Committee referred to in sub-clause (ii) for a period not exceeding six months:

(ii)

If the temporary vacancy is for a period less than a year, appointment to such vacancy shall be made on the recommendation of a local Selection Committee consisting of the Dean of the Faculty concerned, the Head of the Department and a nominee of the Vice - Chancellor:

Provided that if the same person holds the offices of the Dean and the Head of the Department, the Selection Committee may consist of two nominees of the Vice-Chancellor.

Provided further that in case of sudden causal vacancies in teaching posts caused by death or any other reason, the Dean may, in consultation with the Head of the Department concerned, make a temporary appointment for a month and report to the Vice - Chancellor and the Registrar about such appointment:

(iii)

No teacher appointed temporary shall, if he is not recommended by a Selection Committee for appointment under this Act, be continued in service on such temporary employment unless he is subsequently selected by a local Selection Committee or a Selection Committee, for a temporary or a permanent appointment, as the case may be.

43.

Terms and Conditions Service of Heads of Department.

(1)

Each department of the University shall have a Head who shall be a Professor or Director and whose duties and functions and terms and conditions of appointment shall be such as may be prescribed by the ordinances:

Provided that if there is more than one Professor in any Department, the Head of the Department shall be appointed in the manner prescribed by the ordinances:

Provided further that in a Department where there is no Professor, an Assistant professor or a Reader may be appointed as Head of the Department in the manner prescribed by the ordinances.

(2)

It shall be open to a Professor or an Assistant Professor or a Reader to decline the offer of appointment as Head of the

Department.

(3)

A person appointed as Head of the Department shall hold office as such for a period of three years and shall be eligible for reappointment:

(4)

A Head of the Department may resign his office at any time during his tenure of office.

(5)

A Head of the Department shall perform such functions as may be prescribed by the ordinances.

44.

Dean of Faculties.

(1)

Every Dean of Faculty shall be appointed by the Vice- Chancellor from among the Professors in the Faculty for a period of three years and he shall be eligible for re-appointment.

Provided that if at any time there is no Professor in a Faculty, the Vice-Chancellor shall exercise the powers of the Chairman of the Faculty.

(2)

When the office of the Dean is vacant or when the Dean is, by reason of illness, absence or any other cause, unable to perform his duties of his office, the duties of his office shall be performed by such person as the Vice - Chancellor may appoint for the purpose.

(3)

The Dean shall be the Head of the Faculty and shall be responsible for the conduct and maintenance of the standards of teaching and research in the Faculty. The Dean shall have such other functions as may be prescribed by the ordinances.

(4)

The Dean shall have the right to be present and to speak at any meeting of the Board of Studies or Committees of the Faculty, as the case may be, but shall not have the right to vote thereat unless he is a member thereof.

Chapter 9

Miscellaneous

45.

Filling of Casual Vacancies.

All casual vacancies among the members other than ex-officio members of any authority or other body of the University shall be filled as soon as conveniently may be, by the person or body who or which, nominated the member whose place has become vacant and the person nominated to a casual vacancy shall be a member of such authority or body for the residue of the term for which the person whose place he fills would have been a member.

Provided that no casual vacancy shall be filled if such vacancy occurs within six months before the date of the expiry of the term of the member of any authority or other body of the University.

46.

Proceedings of University Authorities and Bodies not to be invalidated by Vacancies.

No act or proceeding of any authority or other body of the University shall be invalidated merely by reason of the existence of any vacancy or of any defect or irregularity in the nomination or appointment of a member of any authority or other body of the University or of any defect or irregularity in such act or proceeding not affecting the merits of the case or on the ground only that the authority or other body of the University did not meet at such intervals as required under this Act.

47.

Removal from Membership of University.

(1)

The Syndicate may remove by an order in writing made in this behalf any person from membership of any authority of the University by a resolution passed by a majority of the total membership of the Syndicate and by a majority of not less than two-thirds of the members of the Syndicate present and voting at the meeting, if such person has been convicted by a criminal court for an offence which in the opinion of the Syndicate involves moral turpitude or if he has been guilty of gross misconduct and for the same reason, the Syndicate may withdraw any degree or diploma conferred on, or

granted, to that person by the University.

(2)

The Syndicate may also by an order in writing made in this behalf remove any person from the membership of any authority of the University if he becomes of unsound mind or

[ deaf-mute; Omitted by Tamil Nadu Universities Laws (Third Amendment) Act, 2022]

or has applied to be adjudicated or has been adjudicated as an insolvent.

(3)

No action under this section shall be taken against any person unless he has been given a reasonable opportunity to show cause against the action proposed to be taken.

(4)

A copy of every order passed under sub-section (1) or sub-section (2), as the case may be, shall, as soon as may be after it is so passed, be communicated to the person concerned in the manner prescribed by regulations.

48.

Disputes as to the constitution of University authorities and bodies.

If any question arises whether any person has been duly nominated as, or is entitled to be, a member of any authority of the University or other body of the University, the question shall be referred to the Chancellor whose decision thereon shall be final.

49.

Constitution of Committees.

All the authorities of the University shall have to constitute or reconstitute committees and to delegate to them such of their powers as they deem fit. Such committees shall, save as otherwise provided, consist of members of the authority concerned and of such other persons, if any, as the authority in each case may think fit.

50.

Power to obtain information.

Notwithstanding anything contained in this Act or in any other law for the time being in force, the Government may, by order in writing, call for any information from the University on any matter relating to the affairs of the University and the University shall, if such information is available with it, furnish to the Government with such information within a reasonable period;

Provided that in the case of information which the University considers confidential, the University may place the same before the Chancellor and the Pro-Chancellor.

51.

Appointment of First Vice-Chancellor.

Notwithstanding anything contained in sub-section (1) of section 10, within three months of the notified date, the first Vice-Chancellor shall be appointed by the Government on a salary to be fixed by them for a period not exceeding three years and on such other conditions as they think fit.

Provided that a person appointed as first Vice-Chancellor shall retire from office if, during the term of his office, he completes the age of sixty five years.

52.

Appointment of Registrar.

Notwithstanding anything contained in sub-section (1) of section 12, within three months of the notified date, the first Registrar shall be appointed by the Government on a salary to be fixed by them for a period not exceeding three years and on such conditions as they think fit:

Provided that the person appointed as first Registrar shall retire from office if, during the term of his office, he completes the age of sixty years in case of academicians and fifty-eight years in case of non-academician.

53.

Transitory Powers of first Vice-Chancellor.

(1)

It shall be the duty of the first Vice-Chancellor to make arrangements for constituting the Syndicate and the Academic Council and such other authorities of the University within six months after the notified date or such longer period, not exceeding one year as the Government may, by notification, direct.

(2)

The first Vice-Chancellor shall, in consultation with the Government, make such rules as may be necessary for the functioning of the University.

(3)

The authorities constituted under sub-section (1) shall commence to exercise their functions on such date as the Government may, by notification, specify in this behalf.

(4)

It shall be the duty of the first Vice-Chancellor to draft such statutes, ordinances and regulations as may be necessary and submit them to the respective authorities competent to deal with them for their disposal. Such statutes, ordinances and regulations, when framed, shall be published in the Tamil Nadu Government Gazette.

(5)

Notwithstanding anything contained in this Act and the statutes and until such time an authority is duly constituted, the first Vice-Chancellor may appoint any officer or constitute any committee temporarily to exercise and perform any of the powers and duties of such authority under this Act and the statutes.

54.

Transfer of Certain Colleges to the University.

Notwithstanding anything contained in any of the Acts, specified in the Schedule, or the Statutes, Ordinances, regulations and order made thereunder, on and from the notified date the colleges imparting courses of study in teachers education in the University area shall be disaffiliated from the University established under the any of the Acts specified in the Schedule to which they were affiliated on the date immediately preceding such day and shall be deemed to be affiliated to the Tamil Nadu Teachers education University.

55.

Certain Tamil Nadu Acts not to apply.

(1)

Subject to the provisions of subsections (2) to (5) the University Acts specified in the Schedule (hereafter in this section referred to as the University Acts) shall, with effect on and from the notified date, cease to apply in respect of the colleges imparting courses of study in teachers education.

(2)

Such cess-or shall not affect -

(a)

the previous operation of the said University Acts in respect of the colleges referred to in sub-section (1);

(b)

any penalty, forfeiture or punishment incurred in respect of any offense committed against the University Acts; or

(c)

any investigation, legal proceedings or remedy in respect of such penalty, forfeiture, or punishment and any such investigation, legal proceedings or remedy may be instituted, continued or enforced and any such penalty, forfeiture or punishment may be imposed as if this Act had not been passed.

(3)

Notwithstanding anything contained in sub-section (1), all statutes, ordinances and regulations made under the University Acts and in force on the notified date shall, in so far as they are not inconsistent with the provisions of this Act, continue to be in force in respect of the Tamil Nadu Teachers Education University until they are replaced by statutes, ordinances and regulations made under this Act.

(4)

Notwithstanding anything contained in this Act, the statutes, ordinances and regulations continued in force under sub-section (3) or made under this Act, every person who immediately before the notified date was a student of a college referred to in sub-section (1), affiliated to any University established under any of the University Acts (hereinafter in this section referred to as "that University") or was eligible to appear for any of the examinations of that University shall be permitted to complete his course of study in that University and the Tamil Nadu Teachers Education University shall make arrangements for the instruction, teaching and training for such students for such period and in such manner as may be determined by the Tamil Nadu Teachers Education University in accordance with the course of study in that University and such students shall during such period be admitted to the examinations held or conducted by that University and the corresponding degree, or other academic distinctions of that University shall be conferred upon the

qualified students on the result of such examinations by that University.

(5)

Subject to the provisions of sub-section (2) but without prejudice to the provisions of subsections (3) to (4), anything done or any action taken before the notified date under any provision of the University Acts in respect of any college to which the provisions of this Act apply, shall be deemed to have been done or taken under the corresponding provision of this Act and shall continue to have effect accordingly unless and until superseded by anything done or any action taken under the corresponding provisions of this Act.

56.

The Librarian.

(1)

The Librarian shall be a whole time officer of the University appointed by the Syndicate on the recommendation of the Selection Committee constituted for the purpose, for such period and on such terms and conditions as may be prescribed.

(2)

The librarian shall exercise such powers and perform such duties as may be assigned to him by the Syndicate.

57.

Special Mode of Appointment.

(1)

The Syndicate may invite a person of high academic distinction and professional attainments to accept a post of professor in the University on such terms and conditions as it deems fit, and on the person agreeing to do so, appoint him to the post.

(2)

The Syndicate may appoint a teacher or any other member of the academic staff working in any other University or organization for undertaking a joint project in accordance with the manner laid down in the ordinances.

58.

Report on affiliated colleges.

The Syndicate shall, at the end of every three years from the notified date, submit a report to the Government on the condition of affiliated and approved colleges within the University area. The Government shall take such action on it as they deem fit.

59.

Power to Remove Difficulties.

(1)

If any difficulty arises as to the first constitution or reconstitution of any authority of the University after the notified date or otherwise in giving effect to the provisions of this Act, the Government may, by notification, make such provision, not inconsistent with the provisions of this Act, as may appear to them to be necessary or expedient for removing the difficulty;

Provided that no such notification shall be issued after the expiry of five years from the date of establishment of the University under section 3.

(2)

Every notification issued under sub-section (1) or under any other provisions of this Act shall, as soon as possible after it is issued, be placed on the table of the Legislative Assembly, and if, before the expiry of the session in which it is so placed or the next session, the Assembly makes any modification in any such notification or the Assembly decides that the notification should not be issued, the notification shall thereafter have effect only in such modified form or be of no effect, as the case may be, so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that notification.

The Schedule (See Sections 54 and 55)

1. The Chennai University Act, 1923 (Tamil Nadu Act VII of 1923).
2. The Madurai Kamaraj University Act, 1965 (Tamil Nadu Act 33 of 1965).
3. The Bharathiyar University Act, 1981 (Tamil Nadu Act 1 of 1982)
4. The Barathidasan University Act, 1981 (Tamil Nadu Act 2 of 1982)
5. The Mother Teresa Women's University Act, 1984 (Tamil Nadu Act 15 of 1984).

6. The Alagappa University Act, 1985 (Tamil Nadu Act 23 of 1985)
7. The Manonmaniam Sundaranar University Act, 1990 (Tamil Nadu Act 31 of 1990)
8. The Periyar University Act, 1997 (Tamil Nadu Act 45 of 1997)
9. The Thiruvalluvar University Act, 2002 (Tamil Nadu Act 32 of 2002)

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